

Amendment No. 1 to HB2141

White
Signature of Sponsor

AMEND Senate Bill No. 2292

House Bill No. 2141*

by deleting all language after the caption and substituting:

WHEREAS, this State fosters the growth of its sports and entertainment industry and encourages lawful competition and economic development to further academics, athletics, trade, and commerce in Tennessee; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-7-170(a), is amended by deleting the subsection and substituting instead the following:

(a) Notwithstanding § 10-7-504 or another law to the contrary, records of or relating to an intercollegiate athletics program of a public institution of higher education must be treated as confidential and must not be open for public inspection if:

(1) The records contain information relating to game or player integrity and that is traditionally not revealed publicly due to the public institution of higher education's need to maintain competitiveness in the sport to which the records relate; or

(2) The records are commercial contracts entered into solely in furtherance of an intercollegiate athletics program and contain information that if disclosed to the public, reasonably could be used to affect the economic advantage of a business over its competitors. This subdivision (a)(2) must not be construed to treat as confidential the information of the aggregate amount of state appropriated funds expended under a contract described in this subdivision (a)(2), the existence of a contract described in this subdivision (a)(2), the identity

of the contracting parties of a contract described in this subdivision (a)(2), or the general topic of a contract described in this subdivision (a)(2).

SECTION 2. Tennessee Code Annotated, Section 49-7-170(f), is amended by deleting the subsection and substituting instead the following:

(f) This section does not create or afford any private cause of action, liability, or basis for injunctive relief or equitable relief by any private person or entity except for a business asserting that disclosure of information would undermine an economic advantage over its competitor.

SECTION 3. Tennessee Code Annotated, Section 49-7-170, is amended by adding the following as a new subsection (g):

(g) Subdivision (a)(2) is repealed on July 1, 2033.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.